

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section
331 of the Code of Criminal Procedure Act
No. 15 of 1979.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No:

CA/ HCC/0215/2025

High Court of Kalutara Case

No: **HC Kalutara**

0099/2008

Sevipillai Kanapathy Sivaselwam *alias*
Thambi

Accused

AND NOW BETWEEN

Sevipillai Kanapathy Sivaselwam *alias*
Thambi

Accused -Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.
Counsel : Ershan Ariyaratnam for the Accused-Appellant
: Akila Dalpathadu S.C. for the Complainant- Respondent
Argued on : 27.05.2026
Decided on : 26.06.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as “the Appellant”) has preferred the present appeal against the judgment and sentence dated 19.03.2025 delivered by the Learned High Court Judge of Kalutara.
2. The Appellant was indicted before the High Court of Kalutara for the murder of Bamunusinghe Arachchige Sarachandra, *alias* Harischandra, an offence punishable under Section 296 of the Penal Code. As opted by the Appellant, the trial was conducted before the Learned High Court Judge sitting without a jury. At the conclusion of the trial, the Learned Trial Judge found the Appellant guilty of the charge of murder and convicted him accordingly. The Appellant was thereafter sentenced to death.
3. Being aggrieved by the said conviction and sentence, the Appellant has preferred the present appeal. Although the Appellant advanced three grounds of appeal, the principal contention urged at the hearing was that the evidence adduced by the prosecution was insufficient to establish the offence of murder. The defense argued that, even looking at the evidence in the strongest possible light, it only proved culpable homicide not amounting to murder. Therefore, the Appellant should have been convicted of that lesser offense under the "sudden fight" exception (Exception 4 to Section 294 of the Penal Code).

4. The first witness to testify for the prosecution was PW1, Ransaluge Ajith. According to PW1, on the day of the incident, as the deceased was proceeding towards the Appellant's line room, the Appellant was being restrained by his mother and sister. However, the Appellant broke free from their hold and struck the deceased with a club.
5. As is evident from the testimony of PW1, the Appellant was being restrained by his mother and sister, who were warning him not to quarrel. This circumstance strongly suggests that a commotion or altercation was already underway at the time of the incident. Such evidence is relevant to assessing whether the events unfolded during a sudden confrontation or quarrel between the parties.
6. PW1 in his cross-examination testified as follows:

“

උ: අම්මයි, අක්කයි එයාට අල්ලාගෙන හිටියේ.

ප්‍ර: කොහොමද අල්ලාගෙන හිටියේ?

උ: ගහ ගන්න එපා, රණ්ඩු වෙන්න එපා කියලා අල්ලාගෙන හිටිය. එපමණයි මට ඇහුනේ.”

(vide page 154 of the Appeal Brief)

7. It is also evident that the deceased was engaged in the sale of illicit liquor, and PW1 had also assisted him in that activity. According to PW1, the Appellant had inflicted only one blow on the deceased, after which the Appellant fled the scene.
8. The evidence of PW3, Ramaiah Ramesh Kumara, also confirms that there was a quarrel and that the deceased came to the scene shouting while armed with an axe. Furthermore, PW3's testimony demonstrates that when the deceased was running towards the Appellant's line room with the axe, the Appellant struck him with a club which he had picked up from the vicinity.

“ප්‍ර: එතොකොට ඔය තමිබ් කියන අය මොනවා කරමින්ද හිටියේ?

උ: කුණුවරප කියමින් කෑ ගහනා හිටියේ.

ප්‍ර: හරිස්වන්ද්‍ර ඔය විදියට කියාගෙන එනකොට මොකද වුනේ?

උ: අතේ පොරවක් තිබුණා එයාගේ.

ප්‍ර: කාගේ අතේද?

උ: හරිස්චන්ද්‍රගේ අතේ පොරවක් අතේ තියාගෙන් කෑ ගහන එක නවත්තවපන් කියලා එතොකොට තමිබ් ඒ ගොල්ලන්නගේ ගෙදර තිබ්ලා පොල්ලක් අරගෙන ගැහුවා.” (vide page 189 of the Appeal Brief)

9. When the deceased fell to the ground after receiving the blow, PW3 stated that he ran to fetch a glass of water, but was also slapped by the Appellant. However, it is further stated that the Appellant later apologized to PW3, stating that the slap had been given by mistake. It is also in evidence that the attack took place in front of the Appellant's line room, when the deceased was running towards the Appellant while armed with an axe.
10. PW2, Muttiah Ramaiya, also testified for the prosecution. Although PW2 did not witness the deceased being struck by the Appellant, his evidence nonetheless confirms that there was a commotion at the relevant time.
11. PW10, Pragathi Lakmini Abeysinghe, was the Officer-in-Charge of Bulathsinhala Police Station at the relevant time. Upon receiving information, the witness proceeded to the scene with several officers to conduct the investigation. According to PW10's observations, the incident had taken place in front of the line room occupied by the Appellant's mother. Furthermore, PW10 recovered an axe near the latrine of the said line room. The Appellant was also arrested by PW10 and his officers. At the time of arrest, the Appellant was drunk, naked, and had injuries on his body, and was also unable to stand properly.
12. According to the evidence of the Judicial Medical Officer, the deceased died two days after admission to hospital. The deceased had suffered a skull fracture, resulting in an intracranial haemorrhage. The skull fracture was caused by severe blunt force trauma, while the other injuries may have been caused due to a fall.
13. Evidently, the deceased was armed with an axe and was advancing toward the Appellant, at a time when the Appellant was being restrained by his mother and sister. There is no evidence that the Appellant was armed with a club at that stage. On the contrary, the evidence indicates that he picked up the club from the vicinity and thereafter struck the deceased. It is also apparent from the evidence that the deceased

approached the Appellant with the axe during a commotion or altercation. These circumstances demonstrate that the Appellant had reasonable grounds to apprehend that, unless he reacted promptly, he was at risk of suffering grievous bodily harm or even death. Accordingly, the Appellant's conduct must be assessed in the context of the imminent threat which he reasonably perceived at the time of the incident.

14. The foregoing factual circumstances necessarily give rise to the question whether the Appellant acted in the exercise of his right of private defence, notwithstanding the fact that such a defence was not expressly advanced at the trial.
15. It is also significant to emphasize that, at the trial, Counsel for the Appellant did not expressly raise any defence based on the general exception stipulated in Section 294 of the Penal Code. However, where the evidence adduced at trial discloses the availability of such a defence, the Trial Judge is obliged to take it into consideration. In this regard, I would like to refer to the case of ***King vs. Albert Appuhamy***, 40 NLR 505, in which it was held;

“Failure on the part of a prisoner or his counsel to take up a certain line of defence does not relieve a judge of the responsibility of putting to the jury such defence if it arises on the evidence.”

16. Similarly, in ***The King vs. Bellana Vithanage Edwin*** 41 NLR 345, the court held that;

“Though the accused has not taken up the defence of intoxication if such defence arises on the evidence, it is the duty of the jury to consider the same.”

17. In ***Jayathilaka vs The A.G.*** [2003] 1 SLR 107, the court held that;

“Though the accused had not taken up the defence of intoxication if such defence arises on the evidence, it is the duty of the jury to consider the same.”

18. Thus, in light of the aforementioned authorities, I shall consider whether the evidence adduced at trial discloses the availability of any defence under the general exceptions stipulated in Section 294 of the Penal Code. Since there is evidence that the Appellant

struck the deceased while the latter was approaching him armed with an axe, it is incumbent upon this Court to consider whether the Appellant is entitled to invoke the right of private defence.

19. The evidence disclosed that the Appellant was unarmed when the deceased advanced towards him while armed with an axe. In these circumstances, the Appellant had reasonable grounds to apprehend an imminent threat of death or grievous bodily harm. Consequently, and in response to that apprehended danger, the Appellant acted promptly by striking the deceased with a nearby club in order to protect himself, and therefore claims entitlement to the exception under Section 89 of the Penal Code; it is necessary to consider the legal principles governing the applicability of the right of private defence.

20. Section 89 of the Penal Code defines the right of private defence as follows;

“Nothing is an offence which is done in the exercise of the right of private defence.”

21. According to G.L. Peiris, in his work *“General Principles of Criminal Liability in Ceylon”*, the exercise of the right of private defence is subject to certain limitations, which he identifies as follows;

- I. The right is available only in the event of an offence being committed.*
- II. The right of private defence may be exercised only in respect of specified categories of offences.*
- III. The nature and degree of the harm which may be inflicted lawfully in exercise of the right of private defence in relation to the harm against which the person invoking the right is seeking to defend himself or another.*
- IV. There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities and the right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.*

22. Accordingly, the right of private defence is available only against an act or omission constituting an offence punishable under the Penal Code or by any law other than the

Penal Code. Further, the exercise of such right is confined to the categories of offences expressly stipulated in Section 90 of the Penal Code.

Section 90 of the Penal Code reads as follows;

Every person has a right, subject to the restrictions contained in Section 92, to defend:

Firstly – his own body, and the body of any other person, against any offence affecting the human body;

Secondly – the property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief, or criminal trespass, or which is an attempt to commit theft, robbery, mischief, or criminal trespass.

23. It should be noted that the voluntary infliction of any harm, including the causing of death, upon the assailant is permissible in the exercise of the right of private defence where the offence giving rise to such right falls within any of the six categories of offences specified in Section 93 of the Penal Code.

- I. An assault which may reasonably cause the apprehension that death will otherwise be the consequence of the assault;*
- II. An assault which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of the assault;*
- III. An assault with the intention of committing rape;*
- IV. An assault with the intention of gratifying unnatural lust;*
- V. An assault with the intention of kidnapping or abducting;*
- VI. An assault with the intention of wrongfully confining a person under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.*

24. According to that Section, the right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to

commit the offence may not have been committed, and such right continues so long as such apprehension of danger to the body continues. The threat, however, must reasonably give rise to present and imminent, and not remote or distant, danger. This right rests on the general principle that where a crime is endeavored to be committed by force, it is lawful to repel that force in self-defence, provided that all other statutory requirements governing the exercise of that right are satisfied.

25. It is trite law that the right to private defence cannot be used to kill the wrongdoer, unless the person concerned has a reasonable cause to fear that otherwise death or grievous hurt might ensue.
26. In the present case, the Appellant was charged with the offence of murder. The evidence suggests that the deceased attempted to assault the Appellant with an axe, a weapon capable of causing death or grievous hurt. In such circumstances, the Appellant was entitled to invoke the right of private defence for the protection of his own body. Where a person is confronted with an imminent attack by an assailant armed with an axe, it would be reasonable for that person to use such force as is necessary to avert the danger. Accordingly, the act of the Appellant in striking the deceased with a club while repelling the attack is capable of falling within the ambit of the right of private defence, subject to an assessment of whether the force used was necessary and proportionate to the threat faced.
27. The following authorities are relevant and provide guidance in determining whether the legitimate limits of the right of private defence have been exceeded in the circumstances of the present case.
28. In *Tissera vs. Edwin* (1929) 30 NLR 408, the court held as follows;

“Under Section 97 of the Penal Code the accused has, in the exercise of the right of private defence, the right to cause any harm used is subject to the restriction contained in Section 92, clause 4, of the Penal Code, that is to say, the harm must be proportionate to the purpose for which the right of private defence is exercised.”
(at page 409)

“What the court has to consider is not the weapon used but the injury inflicted. The injuries inflicted here were non-grievous, and the fact that they were caused with a gun does not take away the right the accused had of causing hurt to the complainant to prevent him from taking away the nuts or till he was arrested.” (at page 410)

29. In **Jansz vs. Appuhamy (1905) 6 Tam. 6**, held as follows;

“The right of private defence of the body does not arise where a man armed with a gun sees at night, on property which he is set to watch, a thief armed with a knife, when the thief shows no intention of using it for the purpose of resistance or attack. However, it was said, where a thief is seen descending a tree with coconuts, the watcher, having no time to have recourse to the public authorities, is justified in firing at the thief so as to prevent the thief’s escape with the stolen property.”

30. According to the above authorities, the courts have consistently emphasized that the right of private defence must be assessed on the basis of necessity and proportionality, rather than the mere nature of the weapon used, and that such right may extend even to the infliction of serious harm where there is no time to seek assistance from public authorities and the threat is immediate.

31. However, the right of private defence is subject to important limitations. It does not arise in circumstances where there is sufficient time to seek the protection of the public authorities. Furthermore, the right extends only to such force as is reasonably necessary for the purpose of defence; in no event authorizes the infliction of more harm than is necessary to repel the attack. The exercise of the right must therefore be proportionate to the nature and gravity of the apprehended danger.

32. In the present case, the Appellant had no reasonable opportunity to have recourse to the protection of the public authorities. According to the evidence of PW10, the distance between the locus of the offence and the Police Station is approximately 10 -12 km. In these circumstances, having regard to the distance involved and the immediacy of the attack, it cannot be reasonably expected that the Appellant could seek timely assistance from the public authorities. Accordingly, this factor supports the Appellant’s plea of private defence.

33. Further, according to the observations of the Judicial Medical Officer recorded at the post-mortem examination, the deceased had sustained a single blow to the head and succumbed to his injuries two days after the assault. The medical evidence is consistent with the inference that the Appellant did not repeatedly attack the deceased. Rather, it suggests that the force used by the Appellant was confined to what he considered necessary to avert the imminent threat posed by the deceased. It therefore supports the conclusion that the force used was not disproportionate to the threat faced.
34. Moreover, it must be emphasized that, in a situation of this nature, the Appellant had little or no opportunity to weigh with precision the exact degree of force necessary to repel the attack or neutralize the assailant. The law does not expect a person confronted with an imminent threat to calculate, with mathematical precision, the quantum of force required for his defence. The suddenness of the events and the urgency of the situation must be taken into account when assessing the reasonableness of the Appellant's response. In this regard, the following judgment of the Supreme Court of India provides valuable guidance.
35. In **Buta Singh vs. The State of Punjab** (1991) 2 SCC 612, the court noted that a person who is apprehending death or bodily injury cannot weigh in golden scales in the spur of the moment and in the heat of circumstances, the number of injuries required to disarm the assailants who were armed with weapons. In moments of excitement and disturbed mental equilibrium, it is often difficult to expect the parties to preserve composure and use exactly only so much force in retaliation commensurate with the danger apprehended to him; where assault is imminent by use of force, it would be lawful to repel the force in self-defence, and the right of private defence commences as soon as the threat becomes so imminent. Such situations have to be pragmatically viewed and not with high-powered spectacles or microscopes to detect slight or even marginal overstepping. Due weightage has to be given to, and a hyper-technical approach has to be avoided in considering what happens on the spur of the moment on the spot and keeping in view normal human reaction and conduct, where self-preservation is the paramount consideration. But, if the fact situation shows that in the guise of self-preservation, what really has been done is to assault the original aggressor, even after the cause of reasonable apprehension has disappeared, the plea of right of private defence can legitimately be negative. The court dealing with the plea

has to weigh the material to conclude whether the plea is acceptable. It is essentially, as noted above, a finding of fact.

36. In considering the commencement and duration of the right of private defence, it should be noted that the right of private defence of the body commences as soon as a reasonable apprehension of danger to the body is formed from an attempt or threat to commit the offence, even if the offence has not yet been committed. Such right continues as long as such apprehension of danger to the body persists, as stipulated in Section 95 of the Penal Code.

37. In *Deo Narain vs. The State of U.P.*, (1973) 3 SCR 57, the Supreme Court of India stated as follows;

*“..... What the High Court really seems to have missed is the provision of law embodied in Section 102 of the IPC. According to that section the right of **private defence** of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence, though the offence may not have been committed, and such right continues so long as such apprehension of danger to the body continues. The threat, however, must reasonably give rise to the present and imminent, and not remote or distant, danger. This right rests on the general principle that where a crime is endeavoured to be committed by force, it is lawful to repel that force in **self-defence**.”*

38. In this regard, a reasonable expectation of danger is sufficient, and the apprehension of danger may arise from an attempt or a threat. However, it is equally well settled that an accused cannot justify the commencement of the exercise of the right of private defence merely on the basis of a subjective belief of imminent danger. The test is an objective one; namely, whether a reasonable person placed in the circumstances of the accused would have had adequate grounds to believe that an attack was imminent.

39. In the present case, the evidence of PW3 clearly demonstrates that the deceased was assaulted by the Appellant when the deceased approached him while armed with an axe. Furthermore, it is evident that the Appellant was not pre-armed; rather, he picked up a club from the vicinity and struck the deceased with it.

40. The evidence of PW1 also confirms that, when the Appellant was being restrained by his mother and sister, he was unarmed. It was only after he broke free from their restraint that he picked up a club and assaulted the deceased. The evidence of PW3 clearly establishes that the deceased was struck with a club by the Appellant when the deceased was approaching him armed with an axe. Thus, it is evident that the Appellant acted without any premeditation, but in the exercise of the right of private defence. These circumstances, taken in their entirety, indicate that the Appellant acted spontaneously in response to an imminent threat, without premeditation, and in exercise of his right of private defence.
41. In *Perera* (1889) 9 S.C.C I, the accused, with a gun in his hand, was walking in his garden at night, watching his fruit. He observed a man running away and a ladder standing against one of his coconut trees. He pushed the ladder away and, discharging the barrel of his gun in the air, called out to the deceased who was on the tree, to come down. The deceased, without replying, took a knife in his hand and began to descend the tree, when the accused fired and hit him in the foot. The accused was charged with voluntarily causing grievous hurt to the deceased. It was held that the accused had acted in the exercise of the right of private defence, and he was entitled to be acquitted.
42. The decision is defensible on the ground that the act of reasonable apprehension in the accused of death or of grievous hurt, so that the firing of the shot amounted to a legitimate exercise of the right of private defence.
43. The principle emerging from this decision is that where an imminent threat exists and the accused acts in reasonable response to such threat, the right of private defence may lawfully justify the resulting harm.
44. In relation to the continuance of the right of private defence, it is well established that where there is a reasonable apprehension of danger to the body is anticipated, the right may be exercised as long as such apprehension of danger to the body persists. Thus, once the assailant is rendered incapable of causing further harm, for instance by being struck unconscious, any subsequent use of force cannot be justified under the plea of private defence, as no imminent danger would then exist. Acts done after the cessation

of danger, particularly those prompted by vindictiveness or revenge, fall outside the protective scope of the said right.

45. In the present case, the evidence of PW3 indicates that the deceased was running towards the Appellant's line room armed with an axe when the Appellant struck him with a club obtained from the vicinity and thereafter fled from the scene. These circumstances corroborate that the Appellant acted in response to a reasonable apprehension of imminent danger and without premeditation. The evidence further suggested that the Appellant used a single blow to neutralize the immediate threat, and once the deceased became incapacitated, the Appellant ceased further action and left the scene. This conduct is inconsistent with any revengeful or vindictive motive after the cessation of danger, and instead supports the conclusion that the Appellant acted within the limits of the right of private defence.
46. In considering the pleading of the right of private defence, while the burden of proving the applicability of an exception generally rests upon the accused, the evidence adduced by the prosecution in the present case itself suggests that the Appellant acted in the exercise of his right of private defence. The facts and surrounding circumstances emerging from the evidence are more consistent with the exercise of that right than with a case of sudden fight.
47. Accordingly, once the prosecution evidence itself gives rise to a reasonable inference that the Appellant acted in self-defence, no further burden rests upon the Appellant to adduce additional evidence in support thereof. The issue must therefore be determined on the totality of the evidence already before the court.
48. In *The King vs. Kirinelis*, (1946) 47 NLR 443, where in a trial for murder, the accused's defence was that he acted under grave and sudden provocation, but the trial judge went further and put before the jury the defence that the accused was acting in the exercise of the right of private defence.

49. In **James Martin vs. State of Kerala AIR** ONLINE 2003 SC 829, held that;

“Under Section 105 of the Indian Evidence Act, 1872 (in short 'the Evidence Act'), the burden of proof is on the accused, who sets up the plea of self-defence, and, in the absence of proof, it is not possible for the Court to presume the truth of the plea of self-defence. The Court shall presume the absence of such circumstances. It is for the accused to place necessary material on record either by himself adducing positive evidence or by eliciting necessary facts from the witnesses examined for the prosecution. An accused taking the plea of the right of private defence is not necessarily required to call evidence; he can establish his plea by reference to circumstances transpiring from the prosecution evidence itself. The question in such a case would be a question of assessing the true effect of the prosecution evidence, and not a question of the accused discharging any burden. Where the right of private defence is pleaded, the defence must be a reasonable and probable version satisfying the Court that the harm caused by the accused was necessary for either warding off the attack or for forestalling the further reasonable apprehension from the side of the accused. The burden of establishing the plea of self-defence is on the accused and the burden stands discharged by showing preponderance of probabilities in favour of that plea on the basis of the material on record.”

50. In the present case, it is to be noted that the Appellant did not take up the defence of right of private defence at the trial. Nonetheless, if the evidence adduced is suggestive that the act complained of occurred in circumstances consistent with the exercise of the right of private defence, the Court is nonetheless duty bound to consider such a possibility in determining the guilt or otherwise of the Appellant.

51. Accordingly, when the surrounding circumstances leading up to the incident are considered in their entirety, they do not disclose a premeditated attack by the Appellant. Rather, the evidence suggested that the Appellant acted in response to an imminent threat posed by the deceased, and in the exercise of his right of private defence for the purpose of protecting himself. There is also nothing in the evidence to suggest that the Appellant acted in a cruel, excessive or unusual manner. On the contrary, the evidence indicates that he fled the scene immediately after delivering a single blow.

52. Foregoing evidence on record is capable of supporting the inference that the Appellant acted in response to an imminent threat posed by the deceased rather than pursuant to any premeditated intention to cause his death.
53. Further, it is also pertinent to observe that the learned Trial Judge erred in concluding that the evidence of PW1, PW3, and PW2 mutually corroborated each other. The evidence of PW1 relating to the assault and the manner in which the deceased approached the scene stands contradicted, if not negated, by the testimony of PW3. Accordingly, it is incorrect to hold that their evidence is mutually corroborative.
54. In the aforesaid circumstances, I conclude that it is not safe to affirm the conviction against the Appellant.
55. For the reasons set out above, we allow the appeal and we proceed to quash the conviction and sentence imposed on the Appellant by the Learned High Court Judge Kalutara.
56. Accordingly, we acquit the Appellant of the charge levelled against him.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal